

**NEW YORK STATE SUPREME COURT
QUEENS COUNTY**

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BELINDA NORMAN,

SUMMONS

Plaintiff,

Index #

-against-

POLICE OFFICER ZIDOR, POLICE
OFFICERS JOHN and JANE DOES 1
through 10,

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is that where the cause of action arose, Queens County, New York.

Dated: Bronx, New York
February 21, 2015

PAULOSE PLLC
5676 Riverdale Avenue, Suite 314
Bronx, NY 10471
347 275 4883

By:


JUSTINE R. GRAY, ESQ.

**NEW YORK STATE SUPREME COURT
QUEENS COUNTY**

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BELINDA NORMAN,

COMPLAINT

Plaintiff,

Index #

-against-

POLICE OFFICER ZIDOR, POLICE
OFFICERS JOHN and JANE DOES 1
through 10,

Defendants.

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INTRODUCTORY STATEMENT

1. This is a civil rights action brought by plaintiff BELINDA NORMAN pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and under 42 USC §§ 1983 and 1988. During a walk to the store with her friend, defendants falsely arrested plaintiff for simply standing and observing a conversation between her friend's son and two police officers. Plaintiff now seeks redress against the defendants for the unnecessary and unreasonable loss of her liberty.

STATEMENT OF FACTS

2. On or about December 1, 2013, at about 2:30 a.m., plaintiff and her friend, Winona Grady, were present on the corner of 40th avenue and 12th street, Queens, New York. Plaintiff had just left her mother's house where a family get-together, celebrating Thanksgiving, had just ended.

3. As they stood there, coincidentally, Wayne Grady, Winona's son, pulled up to the curb to say hello. As Wayne exited the vehicle to greet his mother, an unmarked police car pulled up and parked behind Wayne.

4. Two male, plain-clothed officers asked Wayne for his license and registration. Wayne complied with their request.

5. A discussion then ensued between Winona and the police officers. Plaintiff played no role in the discussion.

6. As the conversation continued, a third officer, defendant Police Officer Zidor, arrived on the scene. Police Officer Zidor approached the two other officers from behind and, without explanation, grabbed plaintiff, threw her on the back of Wayne's vehicle and handcuffed her. The first two officers neither had sought to arrest anyone, nor issued any lawful orders that could have lead to the arrest of anyone.

7. Plaintiff asked why she was being arrested, but Police Officer Zidor refused to respond; the other two officers, Winona and Wayne watched in disbelief as plaintiff was being falsely arrested.

8. Plaintiff was placed inside a police van and taken to the 114th Precinct, located in or about Astoria, New York.

9. Upon arrival at the 114th Precinct, a female police officer patted down plaintiff and inquired as to her arrest. Plaintiff stated that she did not know why she was arrested.

10. The female officer then asked Police Officer Zido, but he ignored her and walked away.

11. Thereafter, the female police officer removed the handcuffs from plaintiff and placed her in a cell.

12. Plaintiff remained in the cell for several hours. She was eventually released with two desk appearance tickets for disorderly conduct in violation of PL 240.20 02 and PL 240.20 06 – completely fabricated violations.

13. On or about, February 21, 2014, plaintiff appeared at the Queens County Criminal Court, located at 125-01 Queens Boulevard, Queens, NY. Plaintiff's two desk appearance tickets, docket number 2014SQ008895 and 2014SQ008894, were dismissed by the Court for legally insufficiency.

FIRST CAUSE OF ACTION

42 USC § 1983/FOURTEENTH, FOURTH & EIGHTH AMENDMENTS

FALSE ARREST

14. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

15. Defendants arrested plaintiff without probable cause, and/or failed to prevent other defendants from arresting plaintiff without probable cause, causing her to be detained against her will for an extended period of time and subjected to physical restraints.

16. By reason of the foregoing, the defendants deprived plaintiff of her rights, remedies, privileges, and immunities guaranteed to every citizen, secured by 42 USC § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution to be free from false arrest and unlawful imprisonment.

17. Defendants acted under the pretense and color of state law and in their individual and official capacities and within the scope of their employment as police officers and employees. The defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of her constitutional rights secured by 42 USC § 1983.

18. As a direct and proximate result of defendants' actions, plaintiff sustained damages in excess of the jurisdiction of all lower courts.

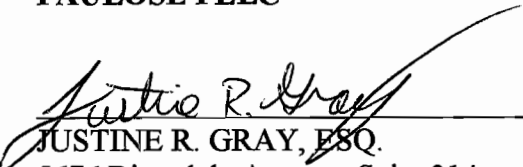
PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that the Court grant the following relief jointly and severally against defendants:

1. Compensatory damages in an amount to be determined at trial;
2. Punitive damages in an amount to be determined at trial;
3. An order awarding attorneys' fees and costs; and
4. Such other or further relief as the Court may deem appropriate.

Dated: Bronx, NY
February 21, 2015

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